

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

DAVID ROMERO,

Plaintiff,

- against -

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICERS JOSEPH FINLAY – SHIELD #01317,
BRYAN MARKSTEINER – SHIELD #01061, JOHN
DOE & JANE DOE.**

Defendants.

SUMMONS

INDEX NO.:

The Basis of Venue is:

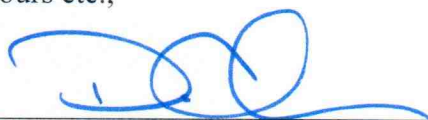
County within the City in which
the cause of action arose as per
CPLR § 504

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
January 12, 2017

Yours etc.,



Law Offices of Daniel D. Chu
By: Daniel D. Chu, Esq.
Attorneys for Plaintiff
60 East 42nd Street, Suite 1638
New York, NY 10165
(212) 869-8188

**SUPREME COURT OF THE STATE OF NEW YORK
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DAVID ROMERO,

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**THE CITY OF NEW YORK, THE NEW YORK
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BRYAN MARKSTEINER, SHIELD #01061, JOHN
DOE & JANE DOE.**

Defendants.

**VERIFIED
COMPLAINT**

INDEX NO.:

Plaintiff, DAVID ROMERO, by his attorney, DANIEL D. CHU, ESQ., complains of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY

1. That at all relevant times, plaintiff DAVID ROMERO, was a resident of the State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on January 13, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
5. Pursuant to the Section 50-h of the General Municipal Law, the statutory 50-H hearing of the plaintiff was completed on June 1, 2016.

6. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed, POLICE OFFICERS JOSEPH FINLAY, Shield #01317, BRYAN MARKSTEINER, Shield #01061, JOHN DOE & JANE DOE, as an agent, servant and/or employee.

7. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DAVID ROMERO, was lawfully operating a motor vehicle on a public roadway located in the County of Queens, City and State of New York.

8. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DAVID ROMERO, was abruptly and without warning knocked off his motorcycle by POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE.

9. That at on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DAVID ROMERO, was never informed of any reason for the unlawful stop effectuated by means of excessive and unnecessary force by POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE.

10. That at on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DAVID ROMERO, was subsequently assaulted and battered by defendant POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN & JANE DOE, while acting as an agent, servant and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

12. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, who committed the aforementioned assault and battery upon the plaintiff, DAVID ROMERO, was acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of a lawful arrest.

14. By reason of said assault and battery the plaintiff was caused to suffer injuries in and

about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, DAVID ROMERO.

18. As the result of said negligence, the plaintiff, DAVID ROMERO, became sick, sore, received injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish, psychological trauma, loss of wages and was otherwise injured.

19. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING AND RETENTION

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agent, servant, and employee and were negligent in the hiring, training and retention of the defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, who assaulted, battered and violated the civil rights of the plaintiff, DAVID ROMERO.

22. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, and continued to employ them and allowed them to be in contact with the public at large.

23. As the result of said negligence in hiring and retention, the plaintiff, DAVID ROMERO, became sick, sore, received injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish, psychological trauma, loss of wages and was otherwise injured.

24. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE ARREST

25. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "24" inclusive with the same force and effect as if more fully set forth at length herein.

26. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, DAVID ROMERO.

27. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

28. That as a result of the aforesaid false arrest and confinement, plaintiff, DAVID ROMERO, sustained personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and distress, mental shock, mental anguish, psychological trauma, loss of wages and was otherwise injured.

29. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the

plaintiff.

32. That defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

33. That as a result of the aforesaid false imprisonment and confinement, plaintiff, DAVID ROMERO, sustained personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and distress, mental shock, mental anguish, psychological trauma, loss of wages and was otherwise injured.

34. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL AND
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through his actions.

37. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DAVID ROMERO. That as a result of said intentional and negligent acts, the plaintiff, DAVID ROMERO, sustained personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and distress, mental shock, mental anguish, psychological trauma, loss of wages and was otherwise injured.

38. By reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION**

39. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at

length herein.

40. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

41. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, while acting within the scope of their employment, maliciously prosecuted the plaintiff.

42. That on or about May 23, 2016, the prosecution was terminated in the plaintiff's favor.

43. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and mental shock and anguish, psychological trauma, loss of wages and was otherwise injured.

44. By reason of the foregoing, plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, while acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, DAVID ROMERO, in violation of 42 U.S.C.A. §1983 as well as other applicable state and federal laws.

47. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, while acting under color of law and within the scope of their authority, deprived the plaintiff, DAVID ROMERO, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. §1983 as well as other applicable state and federal laws.

48. The defendants, by their actions, have deprived the plaintiff of his civil rights as guaranteed by statute.

49. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. §1983 as well as other applicable state and federal laws.

50. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

51. That the defendants' actions were not privileged or immune.

52. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, were not acting with immunity when they deprived plaintiff of his civil rights.

53. That on October 15, 2015, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and mental shock and anguish, psychological trauma, loss of wages and was otherwise injured.

54. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

55. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "54" inclusive with the same force and effect as if more fully set forth at length herein.

56. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

57. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendant, POLICE OFFICERS JOSEPH FINLAY, BRYAN MARKSTEINER, JOHN DOE & JANE DOE, herein-above alleged.

58. By the reason of the foregoing, the plaintiff, DAVID ROMERO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Eighth** Cause of Action; plaintiff, DAVID ROMERO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Ninth** Cause of Action; together with attorneys' fees and the costs and disbursements of this action.

DATED: January 12, 2017
New York, New York

Yours, etc.,



Law Offices of Daniel D. Chu
By: Daniel D. Chu, Esq.
Attorneys for Plaintiff
60 East 42nd Street
Suite 1638
New York, NY 10165
(212) 869-8188

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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Plaintiff,

- against -

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICERS JOSEPH FINLAY - SHIELD #01317,
BRYAN MARKSTEINER – SHIELD #01061, JOHN
DOE & JANE DOE.**

Defendants.

VERIFICATION

I, DANIEL D. CHU, an attorney admitted to practice in the Courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not the Plaintiff is that the Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
January 12, 2017



Law Offices of Daniel D. Chu
By: Daniel D. Chu, Esq.
Attorneys for Plaintiff
60 East 42nd Street, Suite 1638
New York, NY 10165
(212) 869-8188

Index No.:
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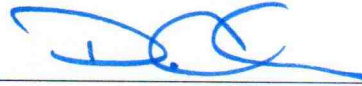
SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF DANIEL D. CHU
Attorneys for Plaintiff
60 East 42nd Street, Suite 1638
New York, NY 10165
(212) 869-8188

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 12, 2017

Signature: _____



Print Signer's Name: DANIEL D. CHU, ESQ.

Service of a copy of the within
Dated:

is hereby admitted.

Attorney for .

Sir:—Please take notice

☐ **Notice of Entry**

that the within is a (certified) true copy of
duly entered in the office of the clerk of the within named court on

☐ **Notice Of Settlement**

that an order of which the within is a true copy will be presented for settlement to the HON.
One of the judges of the within named court, at
on

Dated,

At M.
Yours, etc.

LAW OFFICES OF DANIEL D. CHU
Attorneys for Plaintiff
60 East 42nd Street, Suite 1638
New York, NY 10165
(212) 869-8188